jure to the rule of law de facto in the life of democratic institutions of transitional states'.[193]

The two Slovenian academics are particularly concerned with the judiciary (in Slovenia), finding that 'the overall institutional set-up, modus operandi, material conditions and, finally, the mindset of the people working in the Slovenian judiciary are, ultimately, not conducive to the kind of system of justice required by the rule of law in so-called well-ordered states'.[194]

Continuing looking at the roots of the state of the rule of law in Central Europe, the authors also warn about 'socioeconomic populism' which 'defends the values and the interests of the unprivileged class'.[195] Lack of economic pluralism in Slovenia is exposed, whereby 'control over and the occupancy of the formal institutions are much less important since power lurks in the economic monopoly of the state and private companies attached to it'.[196] For this reason 'in the more "progressive" Slovenia, where formal institutions have long been in the service of informal interests closely connected to the state-run economy, there is simply no need for authoritarian pushes' as we know them from Hungary and Poland.[197] In other words, the authors believe that the capture of the state (and civil society) by the same interest network is of such an extent and runs so deep that controversial actions by those in formal power – that would otherwise raise eyebrows in Brussels – are not even needed. To the contrary: it is precisely the attempts (no doubt some controversial too) to alter the situation described that appear and are presented as contrary to the rule of law, freedom of expressions and the system of checks and balances. This seemed to be evident during Janša's 2020-2022 government, when – admittedly often clumsy and sometimes controversial – attempts to pluralise publicly funded media were met with orchestrated large-scale protests and impassioned appeals to the European Commission and domestic and international press freedom watchdogs. Occasionally violent, these protests against the centre-right government of Mr Janša during the Covid crisis, mainly targeting the health-related prevention measures, were completely free of any nationalist tone, though certainly not of resentment and often also hatred, even instilling some fear among the conservative population.

Such was the extent of this opposition that it led to a landslide election victory of a previously little known opponent, who had announced a